

Omar Cold Storage Pvt. Ltd. v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 30987 of 2014 · **Writ dismissed; additional-security challenge fails by companion order**

HEADNOTE

A consumer writ seeking to quash an April 2014 demand for additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed by a Division Bench, which directed that reasons be read from its same-day order in Writ-C No. 30898 of 2016. An earlier 2014 interim restraint on demanding additional security thereby fell with the petition.

FACTUAL SUMMARY

Omar Cold Storage Pvt. Ltd. challenged Madhyanchal Vidyut Vitran Nigam Ltd.'s April 2014 demand notice seeking additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. A Division Bench on 29 May 2014 connected the writ with W.P. (C) No. 51884 of 2009, directed exchange of affidavits, and, following an interim order in W.P. No. 51844 of 2009 (Supreme Ceramics), stayed demand of additional security until further orders. On 21 March 2017 a later Division Bench dismissed the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security deposit

HOLDING

A writ petition seeking to quash a demand notice for additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Court directing that the reasons be read from its same-day order in Writ-C No. 30898 of 2016. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 51844 of 2009 (All.) (order dated 7.10.2009)			1	Referred